



POLICE DEPARTMENT

November 9, 2023

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202203095 (Incident Date: May 11, 2022) regarding Police Officer Francisco Cardona, Tax No. 936304 (DADS No. 2023-29129)

Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202203095, pertaining to Police Officer Francisco Cardona. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that to pursue Charges and Specifications against Police Officer Cardona would be detrimental to the Police Department's disciplinary process.

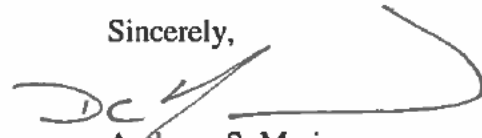
In this matter, Police Officer Cardona responded to a violent EDP assignment with other officers and a sergeant. After the sergeant had unsuccessfully tried to convince the individual to go to the hospital voluntarily, she ordered the officers to handcuff the individual in order to safely transport him to the hospital for an evaluation. Officer Cardona and other officers tried to place handcuffs on the individual, and the scene became chaotic as the individual strenuously resisted being handcuffed and all parties landed on a bed as the officers continued trying to pull the individual's hands into a position behind his back. A review of the available body-worn camera videos was not conclusive as to whether Officer Cardona's hand or arm ever came into contact with the individual's face, as alleged by CCRB. While it is possible that someone's arm or hand may have made incidental contact with the area near the individual's right eye, the cause and manner of that contact is unknown, and has not been demonstrated to be the result of an intentional strike. What is clear in the body-worn camera videos is that the officers used reasonable and necessary physical force to ensure that the individual was safely handcuffed and taken to the hospital.

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Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the Police Department, the Police Commissioner intends, in the interest of justice, to retain jurisdiction over this matter and take no disciplinary action against Police Officer Cardona.

Sincerely,

A handwritten signature in black ink, appearing to read 'AS Marino', with a large, sweeping flourish extending to the right.

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
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ARVA RICE
INTERIM CHAIR

November 17, 2023

The Honorable Edward A. Caban
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB Case No. 202203095 v. Police Officer Francisco Cardona, Tax No. 936304
(DADS No. 2023-29129)

Dear Commissioner Caban:

I am writing in response to the letter from Deputy Chief Andrew Marino, dated November 9, 2023, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) of your intent, in the interests of justice, to retain jurisdiction over this matter and take no disciplinary action against Police Officer Cardona. Pursuant to Paragraph 6 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department (hereinafter referred to as the “MOU”), I am responding to Deputy Chief Marino’s notification.

Deputy Marino stated that after reviewing the recommendation of the CCRB, you determined that the recommended penalty of no disciplinary action against Police Officer Cardona is appropriate because it is clear in the body-worn camera videos that the officers used reasonable and necessary physical force to ensure the individual was safely handcuffed and taken to the hospital.

CCRB is permitted to resolve APU cases for levels of discipline. For this case, § 87(2)(b) resisted officers’ attempts to handcuff him. However, there is no evidence suggesting that § 87(2)(b) flailed, swung, or punched with his arms or hands. PO Cardona’s use of a hand strike to the face was unreasonable, given the considerable physical advantage he and his fellow officers had over § 87(2)(b) the lack of a threat § 87(2)(b) posed, and the brevity of the struggle at the point of the strike.

In addition, the BWC footage of what appears to be PO Cardona striking § 87(2)(b) is supported by § 87(2)(b) reaction. § 87(2)(b) immediately lifted his arm to his face, and declared that someone punched him in the eye. The photographic evidence of the bruised black eye supports § 87(2)(b) statement that an officer punched him in the eye. Further, PO Cardona stated that any contact between his hand and § 87(2)(b) eye that may have occurred was an

unintentional result of his attempts to grab § 87(2)(b) hands. The BWC captured PO Cardona pull his arm back and form a closed fist before and while striking § 87(2)(b) thus indicating the force was not an attempt to grab anything. The strike came ten seconds after PO Cardona and three other officers began physically engaging with § 87(2)(b) who is five inches shorter and forty pounds lighter than PO Cardona, and after § 87(2)(b) was pinned to a bed.

Police Officer Cardona's use of a hand strike to the face was unreasonable, given the considerable physical advantage he and his fellow officers had over § 87(2)(b) the lack of a threat § 87(2)(b) posed, and the brevity of the struggle at the point of the strike. Therefore, Charges and Specifications are appropriate in this matter.

Respectfully submitted,

Matthew Kadushin

Matthew Kadushin
Acting Executive Director
NYC Civilian Complaint Review Board



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

November 21, 2023

Re: CCRB Case No. 202203095 (Incident Date: May 11, 2022) regarding Police Officer
Francisco Cardona, Tax No. 936304 (DADS No. 2023-29129)

Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated November 17, 2023 concerning the Civilian Complaint Review Board ("CCRB") case involving Police Officer Francisco Cardona, and nevertheless maintains that it would be detrimental to the Police Department's disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of Police Officer Cardona, for the reasons expressed in my November 9, 2023 letter.

Therefore, the Police Commissioner affirms his decision to exercise Provision Two of the Memorandum of Understanding and now directs that Police Officer Cardona receive no disciplinary action in connection with this matter.

Sincerely,

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office